

25VECV02944 25VECV02944

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Case Number: 25VECV02944 Hearing Date: September 2, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MOEIR MOUSSIGHI, an
individual; and HANRIT MOUSSIGHI, an individual,

Plaintiffs,

vs.

ASHKAN A. ASHOUR, an individual;

LAW OFFICE OF ASHKAN A.

ASHOUR; DAVAR D. DANIALPOUR,

an individual; LAW OFFICES OF

DANIALPOUR & ASSOCIATES; and

DOES 1-25, inclusive,

Defendants.

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CASE NO.: 25VECV02944

ORDER SUSTAINING DEFENDANTS' DEMURRER WITH

LEAVE TO AMEND AND DENYING DEFENDANTS' MOTION TO STRIKE

ASHKAN A. ASHOUR, an individual;

and ASHOUR YEHOOSHUA, APC,

Cross-Complainants,

VS.

MOEIR MOUSSIGHI, an individual; HANRIT MOUSSIGHI,

an individual; SHANNON LAHIJI, an individual;

DAVID HALIMI, an individual; JP MORGAN CHASE BANK, N.A., a Delaware Corporation; and ROES 1 to 20, inclusive,

Cross-Defendants.

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I.

BACKGROUND

This action is premised on a legal malpractice claim arising from Plaintiffs Moeir Moussighi and Hanrit Moussighi (collectively, "Plaintiffs") against the legal services provided by Defendants Ashkan A. Ashour, Law Office of Ashkan Ashour, Davar D. Danialpour, Law Offices of Danialpour & Associates, (collectively, "Defendants") and Does 1-25. On August 28, 2025, the Court dismissed Defendants Davar D. Danialpour and Law Offices of Danialpour & Associates without prejudice.

On December 10, 2025, the Court conferred with Plaintiff's counsel and stayed the matter pending binding arbitration. Nevertheless, Defendants Ashkan A. Ashour and Law Office of Ashkan Ashour (jointly, "Moving Defendants") now demur to and move to strike portions of the Complaint. The moving papers did not address the Moving Defendants' ability to seek the relief sought despite the stay pending arbitration.

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II.

PROCEDURAL
HISTORY

On May 28,
2025, Plaintiff filed the Complaint alleging one count of Legal Malpractice against
Defendants.

On August 27,
2025, Plaintiffs dismissed Defendants Davar D. Danialpour and Law Offices of
Danialpour & Associates without prejudice.

On December
10, 2025, the Court stayed the matter pending binding arbitration after
conferring with counsel.

On April 1,
2026, the Court granted Moving Defendants' Motions to Compel Responses Special
Interrogatories, Form Interrogatories, and Requests for Production, as well as a
Motion to Deem Requests for Admission Admitted.

On April 28, 2026,
Defendants Filed a Cross-Complaint against Moeir Moussighi, Hanrit Moussighi,
Shannon Lahiji, David Halimi, JPMorgan Chase Bank, N.A., and Roes 1 to 20.

On June 3,
2026, Defendant and Cross-Complainant Ashkan A. Ashour dismissed its cross
action against David Halimi.

On July 28,
2026, Defendants filed a Notice of Motion and Motion to Strike Portions of
Plaintiffs' Complaint.

As of
September 1, 2026, no opposition has been filed.

III.

MEET AND CONFER

Before filing

a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).) A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (See Code Civ. Proc. § 430.41(a)(4).)

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Defendants' demurrer filed on July 28, 2026, Defendant claimed to have made a good faith attempt to meet and confer with the Plaintiff. (Defs.' Dem. 9:2–4.) Thus, Defendants satisfied their meet and confer requirements. The Court reminds Plaintiffs' counsel it expects compliance with all meet and confer obligations and failure to comply again could result in sanctions.

IV.

DEMURRER

A.

Legal Standard

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] “A

demurrer tests the sufficiency of a complaint as a matter of law.”² (Durell v. Sharp Healthcare³(2010) 183 Cal.App.4th 1350, 1358.) “[T]he court

gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.”⁴(Id.)

Allegations are to be liberally construed. (See Code Civ. Proc. § 452.)

In testing the sufficiency

of the complaint, the court must assume

the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan⁵(1985) 39 Cal.3d 311, 318.) A

demurrer tests the pleadings alone and

not the evidence or other extrinsic matters. (See SKF Farms v. Superior

Court (1984) 153

Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v.

Superior Court (1986) 180

Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits. (See *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

A special

demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See *People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See *ibid.*; see also *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643 “[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B.

Analysis

Defendants

demur to Plaintiffs' Complaint on the grounds: (1) the entire action is barred by the statute of limitations (Code of Civil Procedure § 340.6); (2) Plaintiffs'

Complaint fails to state facts sufficient to constitute a cause of action against Defendants; (3) Plaintiffs' Complaint is uncertain, including as to the alleged negligent acts, dates, and causation; (4) Plaintiffs' Complaint fails to allege contractual privity with Defendant Ashkan A. Ashour individually; and (5) Plaintiffs' Complaint improperly attempts to impose liability on a non-signatory individual attorney where the alleged contract is with a law office entity.

1.

Statute of Limitations

To sustain a demurrer based on the statute of limitations, it must appear on the face of the complaint that the statute of limitations is applicable to bar the cause of action. (See *Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 25-26.) Where the dates alleged in the complaint show the action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.) However, when nothing appearing on the face of the complaint suggests the action is barred by the statute of limitations, there are no grounds for a demurrer. (*Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 25.) Further, a demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows the action may have been barred. (*Valvo v. University of So. Cal.* (1977) 67 Cal.App.3d 887, 895.) Instead, it must appear affirmatively that, upon the facts stated, the right of action is necessarily barred. (*Id.*)

To determine the statute of limitations that applies to a cause of action, it is necessary to identify the nature of the cause of action, i.e., the "gravamen" of the cause of action. (*Leeper v. Beltrami* (1959) 53 Cal.2d 195, 214, 1 Cal.Rptr. 12; *San Filippo v. Griffiths* (1975) 51 Cal.App.3d 640, 645.) "[T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code." (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22-23.)

Code of Civil

Procedure § 340.6(a) provides "[a]n action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff

discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.”

Defendants

first argue Plaintiffs’ legal malpractice claim is barred by the statute of limitations. Defendants contend the alleged malpractice arose from conduct occurring in 2016, but Plaintiffs did not file the present action until May of 2025. (Defs.’ Dem. 5:12–15.) Defendants further argue Plaintiffs knew or should have known of the alleged wrongful conduct more than one year before filing the Complaint. (Defs.’ Dem. 5:16–26.) Specifically, Plaintiffs allege they first discovered Defendants’ negligence on June 13, 2024, while Defendants contend Plaintiffs had notice of the underlying facts earlier based on the bankruptcy judgment entered in December 2021 and the subpoena served on Chase Bank in October 2023.

Here,

Plaintiffs allege they first discovered Defendants’ alleged negligence on June 13, 2024, when Chase Bank asserted Defendants failed to obtain an order directed at Chase Bank and failed to use proper service. (See Compl., ¶¶ 17–18.) Plaintiffs further allege they had not sustained actual injury until the court denied the Motion for Order to Show Cause on June 13, 2024. (See Compl., ¶ 26.)

However, the

Complaint also alleges Chase Bank disclosed in response to a subpoena on October 18, 2023, a third party had accessed the safe deposit box. (See Compl., ¶¶ 14–15.) Furthermore, by April 28, 2024, Plaintiffs allege they had retained new counsel and were pursuing relief based on those circumstances. (See Compl., ¶ 16.) The issue is whether these facts were sufficient to place the Plaintiffs on inquiry notice of their legal malpractice claim before the date they allege they actually discovered the alleged negligence.

a.

Delayed Discovery

“The

discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807, accord Bernson v. Browning-Ferris Indus. (1994) 7 Cal.4th 926, 931.) “He has reason to discover the cause of action when

he has reason at least to suspect a factual basis for its elements. He has reason to suspect when he has notice or information of circumstances to put a reasonable person on inquiry...but, within the applicable limitations period, he must indeed seek to learn the facts necessary to bring the cause of action in the first place—he cannot wait for them to find him and sit on his rights.”(See *Unruh-Haxton v. Regents of Univ. of Cal.* (2008) 162 Cal.App.4th 343, 358-59.)

Here,

Plaintiffs had reason to suspect a factual basis for their legal malpractice claim well before June 13, 2024, which is one year before they filed their Complaint. By October 18, 2023, Plaintiffs were aware a third party had accessed the safe deposit box while the levy was in effect, and by April 28, 2024, the Plaintiffs had retained new counsel and sought relief based on the removal of assets from the safe deposit box. (See Compl., ¶¶ 14-16.)

These circumstances were sufficient to place a reasonable person on inquiry notice that the levy had failed to protect the assets and that further investigation into the cause of that failure was warranted. If Plaintiffs were on inquiry notice by April 28, 2024, the limitations period expired on April 28, 2025, one month before the Complaint was filed. Once Plaintiffs possessed information sufficient to place a reasonable person on inquiry notice, they were required to investigate the potential claim within the applicable limitations period. Because Plaintiffs had reason to suspect a factual basis for the claim at that point, the delayed discovery rule required them to investigate the circumstances giving rise to the alleged malpractice.

Thus, the delayed discovery rule does not postpone accrual of Plaintiffs’ legal malpractice claim until June 13, 2024.

b.

Equitable Tolling

Equitable

tolling reflects “a general policy which favors relieving [a] plaintiff from the bar of a limitations statute when, possessing several legal remedies, he, reasonably and in good faith, pursues one.” (*Brome v. California Highway Patrol* (2020) 44 Cal.App.5th 786, 794.) A statute of limitations is equitably tolled while a party with multiple available remedies pursues one in a timely manner. (See, e.g., *McDonald v. Antelope Valley Comm. College Dist.*

(2008) 45 Cal.4th 88, 100, 102.) The three elements required to show equitable tolling are: (1) timely notice to the defendant in filing the first claim (generally this means that the defendant in the first claim is the same one being sued in the second); (2) lack of prejudice to defendant in gathering evidence to defend against the second claim; and, (3) good faith and reasonable conduct by the plaintiff in filing the second claim. (Collier v. City of Pasadena (1983) 142 Cal.App.3d 917, 924.)

Equitable

tolling applies where a plaintiff, in reasonably good faith, pursues legal remedies. Equitable tolling is established when all elements are met. Here, the Plaintiffs allege that new counsel filed a Motion for Order to Show Cause against Chase Bank on April 28, 2024. (See Compl., ¶ 16.) The Motion for Order to Show Cause against Chase Bank did not constitute pursuit of an alternative remedy against Defendants for the same alleged injury and therefore does not support equitable tolling. Furthermore, the Complaint does not allege that Defendants were parties to the prior proceedings on April 28, 2024, or received timely notice through that proceeding of Plaintiffs' potential malpractice claim, or that Plaintiffs were pursuing the same remedy against Defendants. Thus, the allegations do not establish the elements necessary for equitable tolling.

Accordingly,

Plaintiffs have not alleged facts sufficient to delay accrual or toll the applicable limitations period. Because Plaintiffs' legal malpractice claim is therefore time-barred by the statute of limitations, the Court SUSTAINS Moving Defendants' demurrer WITH LEAVE TO AMEND.

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statute of limitations issue is enough by itself to justify sustaining the demurrer, in the interest of judicial economy, the Court will address Moving Defendants' other grounds as well.

2.

Plaintiffs Fail to State a Claim for
Legal Malpractice

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California a viable legal malpractice claim requires proof of '(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or

her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney's negligence.' The third and fourth elements cannot be overlooked. Thus, in transactional as well as litigation malpractice actions, a plaintiff 'must show that but for the alleged malpractice, it is more likely than not that the plaintiff would have obtained a more favorable result.'" (Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP (2010) 183 Cal.App.4th 238, 247-248 (citations omitted).)

Here,

Plaintiffs allege Moving Defendants agreed to provide legal services in connection with the enforcement of Plaintiffs' prior judgment and therefore owed the Plaintiffs a duty to exercise the skill, prudence, and diligence commonly possessed by members of the legal profession. (See Compl., ¶¶ 21-23.) Plaintiffs further allege Moving Defendants breached that duty by failing to properly research the applicable law and failing to obtain and properly serve an order directed at Chase Bank that would have prevented access to the safe deposit box in question. (See id., ¶¶ 17, 21, 23.) Accordingly, Plaintiffs sufficiently allege duty and breach.

Plaintiffs

also allege that had Defendants exercised proper care in connection with the levy, Plaintiffs would have been able to collect the \$250,000 alleged in damages plus the additional assets that were contained in the safe deposit box. (See id., ¶ 24.) Plaintiffs further allege that because of Defendants' lack of proper care, they had to incur additional attorney's fees and costs in their efforts to collect the judgment from Chase Bank. (See id., ¶ 22.) Accordingly, Plaintiffs allege Defendants' conduct caused both the loss of recoverable assets and additional litigation expenses.

Moving Defendants

argue these allegations are insufficient to prove legal malpractice because the Complaint does not adequately explain how Defendants' alleged error, rather than the acts of third parties, caused Plaintiffs' loss. Defendants further argue Plaintiffs fail to allege facts showing they would have recovered the assets but for Defendants' alleged negligence.

The Court

agrees with Moving Defendants Plaintiffs do not allege sufficient facts to establish Defendants' alleged negligence proximately caused the claimed loss.

Plaintiffs' allegations are conclusory as to causation because the Complaint does not allege facts showing a properly obtained or served order would have prevented access to the safe deposit box or that Plaintiffs would necessarily have recovered the identified assets. Therefore, Plaintiffs fail to plead facts sufficient to establish that Moving Defendants' alleged negligence was a substantial factor in causing their claimed loss.

Accordingly,
the Court SUSTAINS Moving Defendants' demurrer WITH LEAVE TO AMEND for failure to state a claim for legal malpractice.

In light of
the Court's foregoing conclusions, it declines to address Moving Defendants' argument the Complaint is uncertain.

V.
MOTION TO STRIKE

A.
Legal Standard

The court
may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (See *id.* at § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See *id.* at § 437.)

A motion to
strike is also the proper procedure to attack a purportedly improper remedy. (See *Venice Town Council, Inc. v. City of Los Angeles* (1996) 47 Cal.App.4th 1547, 1561-1562.) Under Code of Civil Procedure section 1021, except where attorneys' fees are specifically provided for by statute, the measure and mode of attorney compensation is left to the agreement, express or implied, of the parties. (Code Civ. Proc. § 1021.) Section 1021 further provides that parties

to actions or proceedings are entitled to their costs as otherwise provided by law. (See id.)

B.

Analysis

Moving Defendants

move to strike the attorneys' fees and costs from the Plaintiffs' complaint. (Mot. to Strike 2:5–9.) Moving Defendants argue Plaintiffs have no statutory or contractual basis to recover attorneys' fees because Plaintiffs assert only a cause of action for legal malpractice and Defendant Ashkan Ashour is not a signatory to the Retainer Agreement containing the attorney-fee provision. Because the Court is sustaining Moving Defendants' demurrer to the Complaint's only cause of action, the Court DENIES Moving Defendants Motion to Strike as moot.

VI.

CONCLUSION

Based on the

foregoing, the Court SUSTAINS Defendants' Demurrer to Plaintiffs' sole cause of action for legal malpractice WITH LEAVE TO AMEND.

The Court

DENIES Defendants' Motion to Strike as moot.

Plaintiffs have

leave to file and amended complaint by no later than September 18, 2026.

IT

IS SO ORDERED.

DATED: September 2, 2026

Hon.

Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.